GEN-04—Policy on the conditional approval of devices

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1.0 Purpose

The purpose of this bulletin is to:

- clarify Measurement Canada's policy on the conditional approval[1] of devices;
- specify the terms and conditions under which notices of conditional approval (NOCAs) are issued;
- provide guidelines for ensuring proper disclosure of conditional approvals and notification of the installation of conditionally approved devices before these devices are inspected and used in trade.

2.0 Scope

This bulletin applies to devices that are subject to the *Weights and Measures Act* and meters subject to the *Electricity and Gas Inspection Act* that are conditionally approved for use in trade.

3.0 Authority

The Minister has the authority to grant approvals of devices under certain terms and conditions. The director must specify in writing any conditions to which an approval is subject.

4.0 References

Weights and Measures Act, subsection 3(2)
Electricity and Gas Inspection Act, subsection 9(4)
Electricity and Gas Inspection Regulations, section 15
GEN-06—Application of New Specifications and Approval of Trade Measurement Devices That Incorporate Technologies Not Covered by the Existing Specifications

5.0 Definitions

Dealer
(fournisseur)

Any person who in the course of that person's business sells, consigns, imports, leases or lends devices.

Device
(appareil)

A device or component that is subject to the *Weights and Measures Act*, or a meter or apparatus subject to the *Electricity and Gas Inspection Act*.

Inspector

(inspecteur)

A Measurement Canada regional specialist or inspector or a recognized technician employed by an authorized service provider.

6.0 Background

Measurement Canada can conditionally approve devices in the following circumstances:

a. The device, or one or more of its functions, is subject to the terms and conditions established under the *Weights and Measures Act* or the provisional specifications established under the *Electricity and Gas Inspection Act*. The device has been evaluated and is found to be compliant by Measurement Canada's Engineering and Laboratory Services Directorate (ELSD). The NOCA will expire upon adoption of the terms and conditions or provisional specifications as new specifications, unless otherwise stipulated under transitory measures announced at the time the specifications come into effect. Devices installed for use in trade and initially inspected under a conditional approval may require subsequent modifications by the applicant or dealer to comply with the adopted specifications.

b. The device cannot be fully evaluated by the ELSD and the ELSD determines that the device must be installed for use in trade in order to complete the approval testing. The NOCA and all associated inspection[2] certificates will expire on the date stated in the notice, unless it's replaced by a notice of approval or an extension is authorized in writing by Measurement Canada.

7.0 Policy

7.1 Requirements for notices of conditional approval

7.1.1 Type C conditional approvals

As stated in section 6.0 (a), devices that are subject to the terms and conditions established under the *Weights and Measures Act* or the provisional specifications established under the *Electricity and Gas Inspection Act* that are referenced in bulletin GEN-06 may be granted a conditional approval, if these devices are found to comply. If such is the case, a type C NOCA is issued.

The type C NOCA must prescribe the terms and conditions under which the conditional approval is granted, including:

a. the title and effective date of the terms and conditions established under the *Weights and Measures Act*, the provisional specifications established under the *Electricity and Gas Inspection Act* or other approval standard used to evaluate the device, where applicable.
b. a list of the specific conditions under which the device was evaluated, where item a. above is not applicable.
c. a statement to the effect that the NOCA will expire upon adoption of the terms and conditions or provisional specifications as new specifications, and that no further devices will be authorized to be placed into service unless permitted by transitory measures announced at the time the specifications come into effect.

d. a statement to the effect that devices installed and initially inspected against the conditional approval may require subsequent modifications by the approval applicant or dealer in order to comply with the adopted specifications, if these differ from the terms and conditions established under the *Weights and Measures Act* or provisional specifications established under the *Electricity and Gas Inspection Act.*

7.1.2 Type D conditional approvals

As stated in section 6.0 (b), conditional approval may be granted for devices that cannot be fully evaluated for approval by the ELSD and must be installed for use in trade in order to complete the approval testing. If such is the case, a type D NOCA is issued. However, prior to granting the approval, the ELSD will perform any tests that are possible without the device being installed for use in trade. This could be limited to evaluating markings and sealing, but may require that a sample of the device, or some of its components, be provided.

The decision of whether or not a type D NOCA is appropriate for a given device rests solely with the ELSD. Not all devices are suitable for type D NOCAs. An example of an unsuitable device is one used for continuous metering.

The type D NOCA indicates the terms and conditions under which the conditional approval is granted. This includes, but is not limited to:

a. a statement to the effect that any non-compliance with the regulations and specifications that govern the conditional approval will be resolved by the approval applicant or dealer;
b. a statement to the effect that final non-conditional approval is contingent on the results of in-situ approval testing of the device in service, and that it's the responsibility of the approval applicant or dealer to request a final approval and pay all associated costs;
c. a statement to the effect that the approval applicant (or dealer) is required to disclose to the trader, in writing, the terms and conditions prescribed in items a. and b. above, prior to concluding the sale of the device;
d. a statement to the effect that the device is no longer approved for use in trade after expiry of the NOCA, unless an extension is authorized in writing by Measurement Canada;
e. a statement indicating the number of devices permitted to be installed for use in trade or a statement listing the specific devices, by serial number and installation location, permitted to be installed for use in trade.

Prior to concluding the sale of such devices, the approval applicant or dealer must satisfy the written disclosure and notification requirements in accordance with sections 7.3 and 7.4.
As stated in section 6.0, conditional approvals may be granted for devices that are subject to the terms and conditions or the provisional specifications established under the acts and that cannot be fully evaluated for approval by the ELSD without being installed for use in trade. In such cases, a type D NOCA is issued and prescribes the terms and conditions applicable to type C and type D NOCAs stated in sections 7.1.1 and 7.1.2.

Prior to concluding the sale of such devices, the approval applicant or dealer must satisfy the written disclosure and notification requirements in accordance with sections 7.3 and 7.4.

7.2 Conditional approval number

Where a type C conditional approval is granted, the letter C is to be added at the end of the NOCA number (e.g. AE-1234C).

Where a type D conditional approval is granted, the letter D is to be added at the end of the NOCA number (e.g. AM-1234D).

In the approval applicant's copy of a type D NOCA, the approval number will be listed as "TBD" (to be determined). The final approval number will be provided to the approval applicant by a representative of the ELSD (or delegate).

7.3 Written disclosure of the terms and conditions of type D notices of conditional approval

Prior to concluding the sale of a device for which a type D NOCA has been issued, the approval applicant or dealer must disclose, in writing, to the trader who is considering purchasing the device certain conditions prescribed in the NOCA, in accordance with subsection 7.1.2 c.

The ELSD will provide the Statement of Disclosure and Notification of Conditionally Approved Devices to the approval applicant or dealer for this purpose. The document must be signed by the applicant or the dealer, and the trader prior to the sale of the device. The approval applicant or dealer must retain the original signed document and send a copy to the ELSD.

7.4 Written notification of the installation of devices covered by a type D conditional approval

In addition to disclosing information about a type D conditionally approved device to the trader, the approval applicant or dealer must notify the vice-president, ELSD, in writing, prior to the installation of such a device for use in trade, unless it's already listed in the NOCA.

For this purpose, the approval applicant or dealer must provide the following information in the Statement of Disclosure and Notification of Conditionally Approved Devices:

- the installation location;
- the model and serial number of the device to be installed;
- all relevant information regarding the device (e.g. capacity, deck length, flow rate, number of load cells used per weighbridge).

Upon receiving a copy of the signed statement, the ELSD will inform the appropriate regional specialist of the installation in question.

7.5 Completion of the type D conditional approval process

Once a type D NOCA is issued, the approval process is considered complete. A bill will be sent to the approval applicant or dealer for the services rendered up to that point.

In the copy of the NOCA sent to the applicant, "TBD" (to be determined) appears instead of an approval number, and each page bears a watermark indicating the expiry date of the NOCA.

7.6 Requirements for initial inspection of devices that have been granted a type D conditional approval

Initial inspections of devices that have been granted a type D approval can only be carried out by Measurement Canada personnel and must be scheduled with the ELSD.

Before scheduling an initial inspection of such a device, the approval applicant or dealer must contact the ELSD to determine if they need to apply for a revision of the initial type D NOCA. This must be done at least two months before the desired inspection date. The ELSD may refer the applicant to a regional inspector for scheduling. A representative from the ELSD (or a delegate) and an inspector must be present during the initial inspection of the device if a revision of the type D conditional approval is needed. The ELSD may choose an inspector to act as their delegate.

Before an initial inspection of the device is scheduled, inspectors must determine if disclosure of the device's conditional approval and notification of the device's installation have occurred. Inspectors do this by requesting a copy of the written disclosure from the approval applicant or dealer and confirm with the regional specialist that the ELSD has received notification of the subject device's installation. The initial inspection must not be scheduled until this has been confirmed.

Upon completing the initial inspection of a device, the representative from the ELSD (or the delegate) ensures that the test results are complete and satisfactory and returned to the laboratory. They also make the test results available to the inspector for the purposes of issuing the certificate.

7.7 Additional testing of devices that have been granted a type D conditional approval

In some circumstances, the ELSD will need to perform additional testing of a conditionally approved device after a period of use in trade. The device may be used in trade while still covered by a type D NOCA after it has been initially inspected as per section 7.6. This may apply even when additional testing is required by the ELSD before issuing a final non-conditional approval.

The dealer must inform the trader that while the device is still legal for use in trade, it's conditionally approved until its evaluation has been completed by the ELSD.

7.8 Inspection certificates

The certificate must include the following statement indicating the final approval number provided by the ELSD:

The inspected device with model number [insert number] is covered by approval number [A*-####?]

7.9 Revisions

The purpose of revision 3 was to:

- change the title of the bulletin;
- change the scope to allow for type D conditional approvals of meters subject the *Electricity and Gas Inspection Act*;
- update the requirements for initial inspections to more accurately reflect the current practice; and
- make editorial changes to the text.

The purpose of revision 2 was to:

- change to the numbering convention for conditional approvals based on the type of NOCA that is issued (i.e. type C or D);

- clarify that type D conditional approvals apply to devices subject to the *Weights and Measures Act* and Regulations only;
- remove any reference to approval verifications during the initial inspection of devices with a type D NOCA;
- indicate that a representative from the ELSD (or a delegate) must be present during the initial inspection of devices for which a type D NOCA has been issued, and that it's the representative's responsibility to ensure that the test report and inspection certificate are returned to the laboratory;
- remove any reference to document S-A-01:2002;
- replace the term "authorized draft specifications" with "Terms and Conditions of the *Weights and Measures Act* or Provisional Specifications of the *Electricity and Gas Inspection Act*";
- expand the definition of "inspector" to include recognized technicians employed by authorized service providers;
- make format changes to align with other bulletins; and
- make editorial changes to the text.

The purpose of revision 1 was to:

- indicate the reasons for issuing conditional approvals;
- address devices and meters which fall under the purview of both the *Weights and Measures Act* and the *Electricity and Gas Inspection Act*;
- specify certain terms and conditions to be included in notices of conditional approval;
- clarify the circumstances where disclosure to the trader of the terms and conditions of a device's NOCA is required;
- add steps to improve the manner in which Measurement Canada deals with notices of conditional approval; and
- make editorial changes to the text.

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[1] The term "temporary approval" is used in the *Weights and Measures Act*.

[2] The term "inspection" is used in a generic manner and is intended to include verifications and reverifications in accordance with the *Electricity and Gas Inspection Act* and examinations in accordance with the *Weights and Measures Act*.